

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
B. M., an infant over the age of 14 years by his father and natural guardian EDWIN TAVAREZ, and N. B., an infant over the age of 14 years by his mother and natural guardian LATISHA BENJAMIN, and D. S., an infant over the age of 14 years by his mother and natural guardian, NICOLE MILLIKINS, and J. D., an infant over the age of 14 years by his mother and natural guardian MACHANDA ISAAC, and NASIR PHILIPS,

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. PHILIP PENA, P.O. BRYANT VENTURA, P.O. ANDRES GOMEZ, P.O. LEANDRO PAYERO, P.O. KEVIN MARTINEZ and OFFICER[S] JOHN AND JAMES DOE, names presently unknowable by Plaintiffs and being fictitious and meant to designate additional offending officers,

Defendants.

SUMMONS

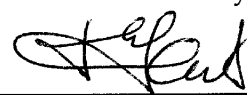
Plaintiffs designate
BRONX County as
the place of trial

The basis of venue

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 11, 2017


By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007
P.O. Phillip Pena, Shield No. 11192, P.O. Bryant Ventura, Shield No. 20651, P.O. Andres Gomez, Shield No. 18894, P.O. Leandro Payero, Shield No. 5496, P.O. Kevin Martinez, Shield No. 24795, all of the
PSA 7 Precinct, 737 Melrose Avenue, Bronx NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
B. M., an infant over the age of 14 years by his father and
natural guardian EDWIN TAVAREZ, and N. B., an infant
over the age of 14 years by his mother and natural guardian
LATISHA BENJAMIN, and D. S., an infant over the age of 14
years by his mother and natural guardian, NICOLE
MILLIKINS, and J. D., an infant over the age of 14 years by
his mother and natural guardian MACHANDA ISAAC, and
N. P., an infant over the age of 14 years by his mother and
natural guardian, NESSIA PHILIPS,

INDEX NO.

VERIFIED COMPLAINT

Plaintiffs,

-against-

CITY OF NEW YORK, P.O. PHILIP PENA, P.O. BRYANT
VENTURA, P.O. ANDRES GOMEZ, P.O. LEANDRO
PAYERO, P.O. KEVIN MARTINEZ and OFFICER[S] JOHN
AND JAMES DOE, names presently unknowable by Plaintiffs
and being fictitious and meant to designate additional
offending officers,

Defendants.

-----X
Plaintiffs, by their attorney, **Jonathan L. Gleit, Esq.**, complaining of the

Defendants, respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFFS B.M., N.B., D.S., J.D.,

by their natural guardians and NAISR PHILIPS

1. At the time of the commencement of this action, plaintiff EDWIN TAVAREZ was
the father and natural guardian B. M., an infant over the age of 14 years.

2. At the time of the commencement of this action, plaintiff LATISHA BENJAMIN was the mother and natural guardian of N. B., an infant over the age of 14 years by his,

3. At the time of the commencement of this action, plaintiff NICOLE MILLIKINS was the mother and natural guardian of D. S., an infant over the age of 14 years.

4. At the time of the commencement of this action, plaintiff MACHANDA ISAAC was the mother and natural guardian of J. D., an infant over the age of 14. years

5. At the time of the commencement of this action, plaintiffs were residents of the County of Bronx, City and State of New York.

6. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

7. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

8. That the CITY OF NEW YORK maintains a Police Department.

9. That on and about August 13, 2016, P.O. PHILIP PENA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

10. That on and about August 13, 2016, at approximately 7 P.M., P.O. PHILIP PENA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

11. That on and about August 13, 2016, P.O. BRYANT VENTURA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

12. That on and about August 13, 2016, at approximately 7 P.M., P.O. BRYANT VENTURA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

13. That on and about August 13, 2016, P.O. ANDRES GOMEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

14. That on and about August 13, 2016, at approximately 7 P.M., P.O. ANDRES GOMEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

15. That on and about August 13, 2016, P.O. LEANDRO PAYERO was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

16. That on and about August 13, 2016, at approximately 7 P.M., P.O. LEANDRO PAYERO was working and acting within the scope of his employment as a Police Officer, and under the color of law.

17. That on and about August 13, 2016, P.O. KEVIN MARTINEZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

18. That on and about August 13, 2016, at approximately 7 P.M., P.O. KEVIN MARTINEZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.

19. That on and about August 13, 2016, OFFICER[S] JOHN AND/OR JAMES DOE , officers involved in the arrests and prosecutions of the Plaintiffs but are presently unknowable by Plaintiffs but necessarily known by Defendants, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

20. That on and about August 13, 2016 at approximately 7 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

21. That on or about August 13, 2016 at approximately 7 P.M., at or near 700 Westchester Avenue, Bronx, New York, the plaintiffs B. M., N. B., D. S., J. D., and NASIR PHILIPS were improperly arrested, and confined without knowledge of warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine B. M., N. B., D. S., J. D., and NASIR PHILIPS.

22. That at the time and place aforesaid, plaintiffs B. M., N. B., D. S., J. D., and NASIR PHILIPS were lawfully present in, at or near 700 Westchester Avenue, Bronx, New York, and at the time they were first detained, the sun had not yet set.

23. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

24. That the defendants, their agents, servants and/or employees arrested the plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

25. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiffs and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement, were thereby causing fright, shock, distress and physical consequences.

26. That the defendants P.O. PHILIP PENA , P.O. BRYANT VENTURA P.O. ANDRES GOMEZ, P.O. LEANDRO PAYERO, P.O. KEVIN MARTINEZ and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to

the prosecutor of the criminal action against plaintiffs thereby causing them to suffer unjust prosecutions initiated without probable cause.

27. That defendants, their agents, servants and/or employees continued to prosecute plaintiffs and threaten their freedom after they knew, or should have known, they were innocent of all charges being alleged against them.

28. That all criminal charges brought against plaintiff B. M. , which were brought under docket numbers 2016BX035210 and 2016BX035206 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on November 17, 2016 and January 31, 2017, respectively, and the criminal proceedings were terminated in plaintiff's favor.

29. That all criminal charges brought against plaintiff N. B. , which were brought under docket number 2016BX035208 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 26, 2017 and the criminal proceedings were terminated in plaintiff's favor.

30. That all criminal charges brought against plaintiff D. S. , which were brought under docket number 2016BX035207 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon.

George A. Grasso on January 31, 2017 and the criminal proceedings were terminated in plaintiff's favor.

31. That all criminal charges brought against plaintiff J. D. , which were brought under docket number 2016BX035215 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 31, 2017 and the criminal proceedings were terminated in plaintiff's favor.

32. That all criminal charges brought against plaintiff NASIR PHILIPS , which were brought under docket number 2016BX035209 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 23, 2017 and the criminal proceedings were terminated in plaintiff's favor.

33. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions.

34. As a result of the malicious prosecutions, plaintiffs were deprived of liberty and suffered the humiliation, anguish, indignity and frustration of unjust criminal prosecutions, and were otherwise damaged and injured. The plaintiffs made court appearances to defend their liberty against these unjust charges over a period extending

from their arraignments through the above dates wherein the prosecutions were terminated in their favor.

35. That the CITY OF NEW YORK allowed, condoned, permitted, practice and caused a policy, practice and procedure of having arrest quotas goals which results in the false arrests of innocent persons.

36. Said policy, practice and procedure of having arrest quotas and /or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

37. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting all persons for conduct that is not criminal.

38. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009.

39. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated by and has occurred to such individuals such as SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at or near 2584 Briggs Avenue , Bronx, New York; and ADEUNA CABRAL ,an infant over the age of 14 years by her mother and natural guardian JOSEFINA CABRAL, JOSEFINA CABRAL, Individually, and ZOIKY BELEN, on January 15, 2009 at 1115 Walton Avenue, Bronx, New York; and again on March 4, 2010; and SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010, at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010 at 2155 Grand Avenue, Apt. 1D, Bronx, New York; and; TREENA WILSON and KENNETH CLARKE on April 8, 2010 in front of 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street,

Apt. 2B, Bronx, New York; NICOLE MITCHELL, SEAN MITCHELL and BRITTNEY CAMPBELL on May 16, 2010 at 2260 Crotona Avenue; and VIVIAN BENNETT, TONY BENNETT, OLIVIA BENNETT, ELIZABETH BENNETT, AHMED BAKYOKO and KEVIN TILLMAN on July 21, 2011 at 1065 University Place, Apartment 2B, Bronx, New York; TIFFANY and CAROLYN HOLMAN on October 21, 2011 at 4647 Park Avenue, Bronx, New York; CHRISTINA MEDINA on June 1, 2012 at 2140 Cruger Avenue, Bronx New York; GINNY TAPP on January 23, 2013 at 2089 Arthur Avenue, Bronx, New York; GERALD ADORNO and TINAMARIE ADORNO on November 14, 2013 at Apartment 2F of 1512 East 172nd Street, Bronx, New York and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and complaints brought against defendants in both state and federal courts and through CITY OF NEW YORK agencies and departments.

40. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

41. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured by the Constitution and laws of the United States, including,

but not limited to a First Amendment right of freedom of expression, a Fourth Amendment right to be free from unlawful seizures of his person, a Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, an Eighth Amendment right to be free from cruel and unusual punishment, and through and under Title 42 U.S.C. 1983, et seq.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the plaintiffs were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS B.M., N.B., D.S., J.D.,
by their natural guardians and NAISR PHILIPS

44. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That on November 4, 2016 and within 90 days after the claim herein sued upon, plaintiff B. M., by his father and Natural Guardian EDWIN TAVAREZ caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant

CITY OF NEW YORK, and that on November 4, 2016 and within 90 days after the claim herein sued upon, plaintiff N. B. , by his mother and Natural Guardian LATISHA BENJAMIN caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, and that on November 9, 2016 D. S., by his mother and Natural Guardian NICOLE MILLIKINS caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, and that on November 10, 2016 J. D., by his mother and Natural Guardian MICHANDA ISAAC caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, and that on November 10, 2016, NASIR PHILIPS, who has since reached his majority, caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

46. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

47. That defendant CITY OF NEW YORK conducted and plaintiffs did appear and testify at General Municipal Law §50h hearings of plaintiffs conducted on February 23, 2017.

48. That this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based and within the time allowed by law.

49. That on or about August 13, 2016 at approximately 7 P.M., at, in or near 700 Westchester Avenue, Bronx, New York, the plaintiffs B. .M., N. B., D. S., J. D. and NASIR PHILIPS were improperly arrested, and confined without knowledge of warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine plaintiffs.

50. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiffs of Due Process under Law.

51. That the defendants, their agents, servants and/or employees arrested and confined the plaintiffs without any basis in law or fact and without reasonable, probable or just cause or justification.

52. That the defendants, their agents, servants and/or employees arrested the plaintiffs without any basis in law or fact, by making false accusations against them, when they knew, or in the exercise of reasonable care, should have known they were false.

53. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiffs and took their property without any basis in law or fact, and plaintiffs being aware of their unlawful confinement, were thereby causing fright, shock, distress and physical consequences.

54. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

55. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

56. That as a result of the foregoing, the plaintiffs were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS B.M., N.B., D.S., J.D.,
by their natural guardians and NAISR PHILIPS

57. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 56 as though more fully set forth herein.

58. That on February 15, 2017 and within 90 days after the claim herein sued upon, plaintiff B. M., by his father and Natural Guardian EDWIN TAVAREZ caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK; and that on February 15, 2017 and within 90 days after the claim herein sued upon, plaintiff N. B. , by his mother and Natural Guardian LATISHA BENJAMIN caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK; and that on February 15, 2017 D. S., by his mother and Natural Guardian NICOLE MILLIKINS caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK; and that on February 15, 2017 J. D., by his mother and Natural Guardian MICHANDA ISAAC caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK; and that on February 16, 2017, NASIR PHILIPS, who has since reached his majority, caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK,

by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notices of Claim set forth the name and post office address of the claimants and claimants' attorney, the nature of the claims, the time when, the place where, and the manner in which the claims arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

59. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

60. That defendant CITY OF NEW YORK conducted and plaintiffs did appear and testify at General Municipal Law §50h hearings of plaintiffs conducted on February 23, 2017.

61. That this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based and within the time allowed by law

62. That the defendants P.O. PHILIP PENA , P.O. BRYANT VENTURA, P.O. ANDRES GOMEZ, P.O. LEANDRO PAYERO, P.O. KEVIN MARTINEZ and/or

OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false

information to the prosecutor of the criminal action against plaintiffs thereby causing them to suffer unjust prosecutions initiated without probable cause.

63. That all criminal charges brought against plaintiff B. M. , which were brought under docket numbers 2016BX035210 and 2016BX035206 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on November 17, 2016 and January 31, 2017, respectively, and the criminal proceedings were terminated in plaintiff's favor.

64. That all criminal charges brought against plaintiff N. B. , which were brought under docket number 2016BX035208 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 26, 2017 and the criminal proceedings were terminated in plaintiff's favor.

65. That all criminal charges brought against plaintiff D. S. , which were brought under docket number 2016BX035207 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 31, 2017 and the criminal proceedings were terminated in plaintiff's favor.

66. That all criminal charges brought against plaintiff J. D. , which were brought under docket number 2016BX035215 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 31, 2017 and the criminal proceedings were terminated in plaintiff's favor.

67. That all criminal charges brought against plaintiff NASIR PHILIPS , which were brought under docket number 2016BX035209 in the Criminal Court of the City of New York, Bronx County, regarding the incidents of August 13, 2016, were dismissed by the Hon. George A. Grasso on January 23, 2017 and the criminal proceedings were terminated in plaintiff's favor.

68. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecutions.

69. As a result of the malicious prosecutions, plaintiffs were deprived of liberty and suffered the humiliation, anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The plaintiffs made court appearances to defend their liberty against these unjust charges over a period extending from their arraignments through the dates of the termination of criminal proceedings in their favor.

70. That no negligence or actions on the part of the plaintiffs contributed to the occurrences alleged herein in any manner whatsoever.

71. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

72. That as a result of the foregoing, the plaintiffs were damaged in sums which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFFS B.M., N.B., D.S., J.D.,
by their natural guardians and NAISR PHILIPS

73. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 72 as though more fully set forth herein.

74. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

75. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper stopping, questioning, searching, detention and arrest of individuals.

76. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, plaintiffs were denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and emotional pain and suffering; that the plaintiffs were made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiffs and for the purchase of drugs and medicines, and that plaintiffs were and in the future will be prevented from attending to plaintiffs' usual vocation and avocations; all to the plaintiffs' damage in sums which exceeds the jurisdiction of all lower Courts.

77. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action, inclusive of punitive damages and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 11, 2017



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiffs

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Phillip Pena, Shield No. 11192, P.O. Bryant Ventura, Shield No. 20651, P.O. Andres Gomez, Shield No. 18894, P.O. Leandro Payero, Shield No. 5496, P.O. Kevin Martinez, Shield No. 24795, all of the
PSA 7 Precinct, 737 Melrose Avenue, Bronx NY 10455

PLAINTIFF'S VERIFICATION

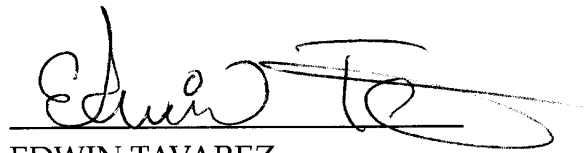
EDWIN TAVAREZ, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


EDWIN TAVAREZ

PLAINTIFF'S VERIFICATION

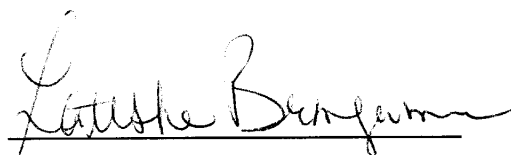
LATISHA BENJAMIN, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


LATISHA BENJAMIN

PLAINTIFF'S VERIFICATION

NICOLE MILLIKENS, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


NICOLE MILLIKENS

PLAINTIFF'S VERIFICATION

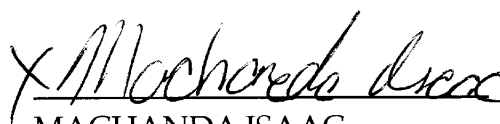
MACHANDA ISAAC, affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


MACHANDA ISAAC